

DISSENTING OPINION BY JONKHEER VAN EYSINGA.
[*Translation.*]

The Italian Application of March 30th, 1936—the admissibility of which is disputed by the French Government's six preliminary objections, in addition to any others which, as indicated in the French submissions of December 14th, 1936, the Court might see fit to add or substitute—is directed against a situation which the Italian Government alleges to be an infraction of certain clauses of the General Act of Algeciras of April 7th, 1906, as modified in consequence of the acceptance of the Franco-German Treaty of November 4th, 1911, by the contracting States of the Act of Algeciras. The Application begins by a reference to the relevant articles of the above-mentioned diplomatic instruments; it goes on to show how these clauses have been transgressed by acts of three different kinds, these "proceedings" being described in the Application as "a continuing and permanent unlawful act", and as a "monopolization of the Moroccan phosphates"; the latter, according to the main Italian submission, is inconsistent with the international obligations of Morocco and of France and should for that reason be annulled with all the consequences that ensue.

The submission of this claim by Italy is to be ascribed to the fact that the administration of the Shereefian Empire is in a large measure governed by international arrangements and that a considerable part of that Empire is under French protection.

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Morocco was a sovereign State with an extraterritorial régime, which included among other features a certain number of collective conventions by which the Powers interested in the Shereefian Empire regulated, in conjunction with the latter, such matters as appeared to call for regulation. In this connection we may note the collective Convention of Tangier of 1865 concerning the Cape Spartel Lighthouse, also the Madrid Convention of 1880 relating, among other matters, to "protected persons" in Morocco, Article 17 of which Convention assured the most-favoured-nation treatment to all the Powers represented at the Madrid Conference. It was on the basis of that clause that the Algeciras Conference was convened in 1906. The General Act of Algeciras of April 7th, 1906, which emerged from that Conference, endowed Morocco with a régime internationalizing a large part of the administration of the Shereefian Empire in a twofold sense. Twofold because, in the first

place, the status of Morocco has an international basis, i.e., it is a collective convention; and secondly, because the clauses of the Algeciras Act which provide for economic freedom, without any inequality—and hence for the open door—were implemented by international arrangements, in the application of which the diplomatic Corps at Tangier and international commissions played an important part. Thus, for example, the dahir of January 19th, 1914, which regulates the prospecting and working of mines in the French Protectorate zone of the Shereefian Empire and which contains special clauses in regard to prospecting for and working phosphates, was drawn up in pursuance of international arrangements.

In 1912, the international status of the Shereefian Empire underwent an important change. The Powers then accepted the preponderance of France, on condition however that there should be no departure from the principle of the open door. The preponderance of France found expression in the Franco-Moroccan Protectorate Convention of March 30th, 1912, to which the Powers were asked to accede.

It will be seen from the foregoing that the régime of the Moroccan Protectorate is more complicated than that found where a single Colonial Power has to deal with a protected State. Many of the clauses of the Algeciras Act have continued to be applicable since 1912, as M. Basdevant has pointed out in his remarkable treatise "*Die Entwicklung der Marokko-Frage*" (*Jahrbuch des Völkerrechts*, I, pp. 742 *et seq.*). Disregarding the Spanish and Tangier zones, the case we have to consider is that of a State, whose international status is in a large measure determined by collective conventions and which is under the protection of one of the States parties to these conventions.

The Protectorate Convention of 1912 between France and Morocco provides that, for all questions concerning relations between the Shereefian Empire and foreign Powers, France shall be competent. It is, apparently, owing to this situation that the Italian Application, although it makes a distinction between the interests and international obligations of Morocco, on the one hand, and those of France, on the other hand (see also the Italian Memorial, p. 59, No. 44, last para.), is directed solely against France, who, as is indeed said in the Application, has incurred a twofold responsibility: an indirect responsibility as the State protecting Morocco, and a personal and direct responsibility arising from the acts performed by the French authorities or in co-operation with them, for the benefit of purely French interests. France did not demur to this attitude, except perhaps when the French Agent said: "Nor will I dwell on the demand which seeks to make the Government of the French Republic exercise powers of annulment

in regard to these acts" (i.e., all the acts which France and Morocco have performed with a view to effecting the monopolization of phosphates, in particular, the acts instituting the monopoly and the cartel, the decision of 1925 refusing to acknowledge Tassara as discoverer, and the other acts incompatible with the restoration of economic liberty in regard to Moroccan phosphates) "which she does not possess, and which the Protectorate régime recognized by the Italian Government does not allow her to exercise" (Oral Pleadings, I, p. 101).

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As has already been observed, the main Italian claim is therefore directed against a series of "proceedings", mentioned in the Application and said to constitute "a continuing and permanent unlawful act", the "monopolization of the Moroccan phosphates". This monopolization, according to the Italian Application, involves the international responsibility of France, under three different aspects: the first aspect being the creation of the monopoly, said to be contrary to the principle of the open door laid down in the Act of Algeciras, and to Article 112 of that Act, which prescribes the system of concessions for mines, mining works and quarries; the second aspect being the Department of Mines' decision of January 8th, 1925, against the Italian claimants which is characterized as *ultra vires*, and constituting a misuse of power; and the third aspect being the obstacles which were placed in the way of the Italian claimants when they sought to obtain a reversal of the Department of Mines' decision, this being alleged to constitute an actual denial of justice.

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In the last of its six preliminary objections, that upon which the Court has adjudicated, France has objected to the Italian Application on the ground that the dispute which Italy has submitted to the Court has arisen in regard to situations and facts prior to September 7th, 1931; that, accordingly, it falls outside the scope of the Court's compulsory jurisdiction; and hence that the Italian Application cannot be entertained. This preliminary objection in fact denies the jurisdiction of the Court.

The question whether the Court's compulsory jurisdiction exists in the present case is the same as the question whether the Italian-French dispute falls within the scope of the French declaration of September 19th, 1929. It should be observed in that connection that France does not found her argument on the Italian declaration of September 9th, 1929—the text of which, moreover, would not appear to lend itself to such reasoning.

According to the French declaration, the Court has jurisdiction for "any disputes which may arise after the ratification of the present declaration with regard to situations or facts subsequent to such ratification". In order to adjudicate upon the sixth of the French preliminary objections, we have therefore to interpret the words quoted above. Disregarding a minor difference in the French declaration which speaks of "*des situations*" and "*des faits*" in place of "*de*"—a detail apparently of no significance—, we find the same words employed in a large number of similar declarations; they appeared for the first time in the Belgian declaration (Sept. 25th, 1925).

By the term "dispute" the French declaration means disputes between States, and not for instance the dispute between the Italian claimants and the Moroccan authorities, the latter dispute being one of the "*causal facts*"—a term often employed in this case—of the Italian-French dispute, from which it "*arose*"—another term which is also frequently used. We must beware of confusing these two kinds of disputes, and in that connection we should remember that the Italian-French dispute now before the Court did not arise before June 16th, 1933, the date on which Italy took up the cause of its nationals.

Again, the French-Italian dispute arose "after the ratification of the present declaration". The latter words, in their context in the French declaration, refer to the ratification by France, the instrument of which was deposited on April 25th, 1931. And even if it were thought necessary, applying the principle of reciprocity, to be guided in this case by the date of deposit of the Italian instrument of ratification, i.e., September 7th, 1931, it would be none the less true that the dispute arose "after the ratification of the present declaration", which was necessarily earlier than the date of deposit of the instrument of ratification.

The question whether the Court has jurisdiction to entertain the present suit depends, in the last analysis, on the following words of the French declaration: "with regard to the situations or the facts subsequent to such ratification". These words show that the declaration draws a distinction between situations, on the one hand, and facts, on the other hand, with regard to which disputes must arise in order to fall within the Court's jurisdiction.

The submission in the Application under (a) declares that the monopolization of the Moroccan phosphates accomplished by stages, between 1920 and 1934, for the benefit of French interests, is inconsistent with the international obligations of Morocco and France and that it must, for that reason, be annulled with all the consequences that ensue. The claim refers, as was said above, to a series of "proceedings" which together constitute and are typical of the new phosphate régime in Morocco and which are described in the Application as a continuing and

permanent unlawful act. This continuity and permanence of an unlawful act certainly constitutes a situation, and it is indeed with regard to that situation that the Italian-French dispute arose. It suffices to note that this situation, which Italy alleges to be inconsistent with the Act of Algeciras, existed subsequently to the ratification, in order to conclude that the Court has jurisdiction in the dispute.

It has been said that the French declaration limits the Court's compulsory jurisdiction to disputes *arising* from situations or facts subsequent to the ratification (Oral Statements, II, p. 338), and arguing on these lines, it has been held that the French declaration makes it necessary to seek "*the causal facts of the dispute*", these facts being said to be prior to the ratification. The idea that the French declaration only submits to the Court's compulsory jurisdiction disputes arising from situations or facts subsequent to the ratification appears again in the title of paragraph III of the French Preliminary Objections, page 81—a title which, be it observed, makes no mention of situations, and is worded as follows: "Dispute arising out of facts prior to the acceptance of compulsory jurisdiction".

It should be noted, in regard to that point, that this attempt to restrict the scope of the French declaration reads into its text something that it does not contain. The French declaration accepts the Court's jurisdiction for "any disputes which may arise.... with regard to situations.... subsequent to such ratification". Now, a *dispute* "*which arises with regard to situations subsequent to a given date*" is something different from a *dispute the causal facts of which are subsequent to that date, or from a dispute which arises from a situation subsequent to that date*. The attempt to interpret the French declaration in this way limits its scope in a manner which is scarcely consistent with the more general formula, used in the declaration, "with regard to" situations subsequent to the crucial date.

In view of the foregoing, I consider the sixth of the French preliminary objections to be ill-founded.

In the present statement I have refrained from any expression of opinion regarding the other preliminary objections formulated or envisaged in the French submissions of December 14th, 1936.

I would add that, as regards the form in which the judgment is drawn up, I am unable to agree with the omission of the statement of facts which it has hitherto been the Court's practice to include in its advisory opinions as well as in its judgments, whether these relate to the merits of a case or to a preliminary objection.

(Signed) v. EYSINGA.